

		Motion No. 4 - Motion for an Order Deeming Truth of Matter in Requests for Admission, Set One, Admitted Plaintiff Levon Joseph Gharibian's Motion for an Order Deeming Truth of Matter in Requests for Admission, Set One, Admitted, as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections.
10	24-01437581 <i>Guzman vs. Gordon</i>	Motion to Quash Subpoena Plaintiff Itzel Britani Ortiz Guzman's Motion to Quash Subpoenas for Business Records (ROA 39) is GRANTED. Plaintiff seeks to quash Defendants' subpoenas to the following third parties: 1. Anaheim Global Medical Center (Medical) 2. Patrick A. Black, D.C. (Medical, Billing & X-rays) 3. Kenneth R. Grabow, M.D. (Medical, Billing & X-rays) 4. Open Advantage MRI (Medical, Billing & X-rays) 5. Pegasus Surgery Center (Medical, Billing & X-rays) 6. Interinsurance Exchange of the Automobile Club (Insurance) 7. Anaheim Global Medical Center (Billing) 8. Anaheim Global Medical Center (X-ray) Plaintiff also seeks sanctions of \$3,435.00. Upon a motion reasonably made by a party, the court may quash, modify or direct compliance with a subpoena for production of documents. The court "may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc. § 1987.1(a) & (b).) Plaintiff asserts the foregoing subpoenas, issued in October 2025, are overbroad in that they broadly seek Plaintiff's medical records for ten years prior to the date of the subject collision on 12/12/22. Plaintiff's counsel served objections and sent a meet and confer letter to Defendant's counsel on 11/18/25. Defendants' counsel had not responded to the letter as of 11/25/25. Defendants have not filed a timely opposition to the motion, which was served on 11/25/25. The motion is granted. The Court finds the subpoenas broadly seeking medical records from 10 years prior to the date of the collision is overbroad. Defendants' counsel is ordered to meet and confer with Plaintiff's counsel before service of any amended subpoena to these providers.

		Plaintiff's request for sanctions is granted in the amount of \$3,435.00. Defendants' counsel has failed to meet and confer or oppose the motion to show there was a substantial justification for their position. (Code Civ. Proc. §§ 1987.2, 2023.010.)
12	24-01402534 <i>Rascon vs. Kia America, Inc.</i>	Motion for Attorney Fees Plaintiff Savannah Rascon's Motion for Attorney's Fees is GRANTED in the amount of \$32,973. Plaintiff's request for costs is denied. (Cal. Rules of Court, rule 3.1700, subd. (a).) <u>Hourly Rate</u> "The reasonable hourly rate is that prevailing in the community for similar work." (<i>PLCM Group, supra</i>, 22 Cal.4th 1084, 1095.) "There is no requirement that the reasonable market rate mirror the actual rate billed . . . The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (<i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 701 [cleaned up].) Plaintiff is seeking fees of \$500/hr. and \$545/hr. for Hollins and \$600/hr. for Fhima as attorneys and \$220/hr. for Ianni as a paralegal. The Attorney Fee Survey Report provides \$569/hr. as the median fee charged in vehicle cases in the southern California area in 2017-2018. The average paralegal rate was \$120 in 2017-2018. Thus, after careful consideration of all papers and its own files and knowledge of fees in the community, the court finds the hourly rates by counsel are within the reasonable range, however, the paralegal rates are reduced to \$150/hr. <u>Reasonable Hours Spent</u> First, Defendants seeks to reduce Plaintiff's fees for mostly unspecified "clerical" work by attorneys. Summarizing repair orders is not clerical work. Further, the Court does not find any other billing entries to be purely clerical work. Thus, the reduction is denied. Second, Defendant requests a reduction of 3.8 hours of the 7.6 hours billed for drafting the Complaint, propounding discovery, and responding to Defendant's discovery. Defendant provides no evidence through its counsel's declaration of Plaintiff using templates to draft documents or respond to discovery. Thus, there is no evidence to support Defendant's argument. Therefore, the reduction is denied. Third, Defendant requests a general reduction to the 4.5 hours to draft this Motion, 4 hours to review the opposition and prepare a reply, 3 hours to prepare for and attend the hearing, and 3 hours to prepare an opposition for a motion to tax costs. Defendant did not file a motion to tax. Additionally, 3 hours is excessive to prepare for and attend the hearing. Defendant's claim the motion is also templated lacks the same